CALEB MUCHECHE N.O
versus
ATTORNEY GENERAL OF ZIMBABWE N.O
and
MASTER OF THE HIGH COURT N.O

HIGH COURT OF ZIMBABWE
TSANGA J
HARARE; 5 March & 1 June 2026

Opposed Application

C Mucheche, for the applicant
O Zvedi, for the 1st respondent
A Nolibo, for the 2nd respondent

TSANGA J: This is an application for a declaratory order challenging the constitutional validity of s 68(4) of the Administration of Estates Act [*Chapter 6:01*]. It provides as follows:

S68 (4):

> "A marriage contracted according to the Marriage Act [*Chapter 5:11*] or the law of a foreign country under which persons are not permitted to have more than one spouse shall be regarded as a valid marriage for the purposes of this Part even if, when it was contracted, either of the parties was married to someone else in accordance with customary law, whether or not that customary law marriage was solemnised in terms of the Customary Marriages Act [*Chapter 5:07*]: Provided that, for the purposes of this Part, the first-mentioned marriage shall be regarded as a customary-law marriage."

The applicant contends that the impugned provision infringes constitutional guarantees of equality, non-discrimination, dignity, protection of women's rights, and equal status of marriages as protected under ss 2, 25, 26, 56, 71, 80 of the Constitution of Zimbabwe Amendment (No.20),2013. This is in relation to a customary law wife whose husband went on to contract a civil law marriage when hers was already in existence. Applicant posits that such recognition of the civil marriage makes a mockery of the customary law marriage whether registered or unregistered. The constitutional provisions said to be violated include s2 which declares the supremacy of the constitution and the

invalidity of any law, practice, custom or conduct which inconsistent with it. Section 25, under national objectives, enjoins the State to protect the family. Section 56, guarantees equality before the law and equal protection and benefit of the law. Section 80, guarantees women equal dignity and rights in political, economic and social spheres; and s 26, obliges the State to ensure equality of rights and obligations of spouses during marriage and at its dissolution. Section 71 protects property rights. All these are said to be violated.

The relief sought is a declaration that s 68(4) is unconstitutional and invalid, together with consequential relief directing the respondents to facilitate legislative amendment of the provision. The respondents oppose the application. The first respondent raises, as a preliminary point, the issue of locus standi. The second respondent opposes the application on the merits and contends that the provision is protective rather than discriminatory in nature.

THE SUBMISSIONS

Mrs Zvedi, for the Attorney General, (AG) argued that the applicant's founding affidavit falls short as it fails to plead his locus standi only purporting to do so in the answering affidavit, thus rendering it fatally defective. She also submitted that the applicant ought to point to a similar class of persons who have been treated in a discriminatory manner and to also point out that a similar class has been treated in a preferential manner to the detriment of others. She argued that the applicant had not pointed to any such class of persons. She urged the court to make a finding that the matter was not properly before the court for having failed to plead *locus standi*. Reliance was placed on *Mudzuru & Another* v *Minister of Justice Legal and Parliamentary Affairs NO & Ors CCZ 12/15* and *Nkomo v Minister of Local Government Rural and Urban Development & Ors 2016 (1) ZLR 113 (CC)* both of which discuss the necessity and requirements of locus standi under s 85 of the constitution.

She further argued that the application is devoid of any cause of action against the first respondent as the mandate of the first respondent is given under the Constitution. Key under that mandate is to represent the government in civil litigation, to draft legislation and to also act as its chief legal advisor. She argued that should the amendment be warranted or required her primary mandate would be to draft the legislation or amendment called for. It is not the AG's mandate to move for an amendment and in that regard, she argued that there was material non-joinder of the Ministry of Justice. The applicant was said to have rushed to

court without exhausting internal remedies. She also opined that this was a proper case for invoking the doctrine of subsidiarity in that applicant had other options available to address the perceived gaps in s 68 (4). These options include lobbying the law development commission; petitioning parliament under s 149 of the Constitution which addresses that right; and approaching the relevant Ministry to address perceived gaps in the law.

The grievance was further said to be hypothetical in that applicant has not been very clear as to the nature of the amendment sought. The first respondent had thus been dragged to court prematurely. She sought that the matter be dismissed with no order as to costs.

Regarding the preliminary point that the applicant failed to specifically plead the constitutional basis upon which he approaches the court and therefore lacks locus standi, the applicant submitted that he approached the court in terms of s 85(1)(d) and (e) of the Constitution as a person acting in the public interest and in the interests of a class of vulnerable persons, namely widows and women affected by inheritance disputes arising from dual marriage regimes.

PRELIMINARY ISSUE: *LOCUS STANDI*

I will deal with the preliminary point on *locus standi* as the issue of whether there is no cause of action and whether the provision is discriminatory necessitate an engagement with the essence of the application. Section 85(1) of the Constitution significantly broadened standing in constitutional litigation. It permits any person acting in the public interest, or in the interests of a group or class of persons, to approach the courts alleging infringement of fundamental rights and freedoms. The purpose of the section is to facilitate access to constitutional justice and to ensure that constitutional rights are not rendered illusory by restrictive rules of standing.

In *Mudzuru* (supra), the Constitutional Court emphasized that public interest litigation is an essential constitutional mechanism for the protection of vulnerable groups and the vindication of constitutional norms. The applicant's papers indeed show that he has identified himself as a legal practitioner and researcher engaged in inheritance and family law disputes affecting widows and orphans. The subject matter of this litigation concerns the legal status and proprietary consequences of marriages under customary law when a civil marriage with someone else is brought into play against an existing customary marriage. These are matters of obvious public importance touching directly upon women's constitutional rights and succession rights.

Although the founding affidavit could have more precisely articulated the constitutional provision grounding the applicant's standing, constitutional litigation must not be defeated by undue technicality where the substance of standing is evident from the pleadings. The court must adopt a generous and purposive interpretation consistent with access to justice and constitutional supremacy.

I am satisfied that the applicant has established sufficient standing under s 85(1)(d) of the Constitution. The preliminary point therefore fails.

THE MERITS

Mr Mucheche emphasised that s 68 (4) in its current form creates a fertile ground for violation of a plethora of legal rights enshrined in the Constitution especially property rights. He argued that marriage under customary law is in community of property whereas every civil marriage is out of community of property. (This is not the case as customary marriages are **out of community of property** by default, just like civil marriages).

He elaborated that s 68 (4) creates injustice in that a spouse can toil to build a family empire and yet find herself competing with another person who was unknown during marriage. There are also unequal benefits and protections of law in the marriage relation, in that polygamy is practised by men. He further highlighted that s 68 (4) runs counter to the Marriages Act [Chater5:17] in that no person may be married under general law and customary law at the same time. He also argued that s 26 of the Constitution enjoins the state to take measures on equality, during marriage, and, on its dissolution.

In addition, he stressed that customary law and general law are at par in terms of sources of law and as such there is no reasonable justification to give bigamous marriage a legal status which ordinarily would not apply in the reverse. Equally, he put forth that the phraseology which seeks to import a foreign marriage to be placed at par with a customary law marriage does not augur well for providing protection and equal benefit of the law. He submitted that it allows for an ambush marriage and creates disharmony. The law, he added, also leaves surviving spouses at the mercy of each other when law should be certain, uniform and, enforceable. He strongly pressed for a recast of s 68 (4) to avoid condemning innocent citizens into perpetual conflict over inheritance matters. In essence, he pointed to the need to align s 68(4) with the Constitution. He urged the first respondent to advise government of the legal lacuna which in his view is crying out for redress. He maintained that as principal legal adviser the first respondent is properly positioned to bring these legal inconsistencies to the

relevant body for redress. Whilst alignment of laws is work in progress, he argued that in this instance, justice delayed is justice denied. The issue could also be put to public debate to address the issue of the duty to disclose a marriage.

On merits, Ms Zvedi stood by the argument that the order for invalidity would be superfluous as ss2 and 80 of the constitution already declare that any laws, customs and practices that are in conflict with the constitution are invalid. Section 2 emphasises the supremacy of the constitution. As such, her standpoint was that if the applicant is indeed so convinced that s68(4) is contrary to the Constitution then he should lobby for the amendment of that provision instead of seeking a declarator. The Minister of Justice chose not to be joined following my directive through an order that he be made a party. Mrs Zvedi's position was that her arguments on behalf of the Minister would in any event be the same on merits as those she has put forward on behalf of the AG.

Ms Nolibo from the Master's Office represented the Master as the second respondent. She submitted that the proposed change is unwarranted. The Master, she put forward, is an administrative authority whose principal mandate is to administer deceased estates. She argued that the mandate is not to determine the fairness or otherwise of existing statutes. Furthermore, s 68 (4) she highlighted, is a special provision which should be understood in the context enacted. It was enacted to deal with public outcry of women who would have contracted customary law marriages but the husband later contracts a marriage with another woman who may upgrade her marriage to a civil one. The customary law wife would have been shut out of the door by a woman with a marriage certificate. As such, she emphasised that it is the intention of s 68(4) which should be taken into account. She stressed that the provision is a product of policy considerations and the law is clear that where you have a special provision it must be interpreted in the contexts of the subject matter. In so far as the provision is said to not sit well with the new Marriages Act, she submitted that the legislature was alive to the existence of s 68 (4) and to the extent that s 68 (4) remains, this is an indicator that it is serving its purpose of protecting women in customary marriages. What the section does, she further elucidated is not to make any marriage inferior but instead to make a marriage equal. In essence, it prevents disinheritance of a preceding wife.

THE CONSTITUTIONAL QUESTION

The issue for determination is whether s 68(4) of the Administration of Estates Act violates the Constitution. The impugned provision provides that a marriage contracted under

the Marriage Act, notwithstanding the existence of a prior customary law marriage, shall for purposes of inheritance be regarded as a customary law marriage.

The applicant argues that the provision:

1. creates inequality between customary and civil marriages;
2. permits men to benefit from dual marriage regimes in a manner unavailable to women;
3. undermines the equal status of marriages guaranteed by the Constitution and the Marriages Act;
4. prejudices women's proprietary and inheritance rights; and
5. perpetuates gender discrimination.

The respondents contend that the provision does not authorize dual marriages but merely regulates the consequences of such unions for inheritance purposes in order to protect women married under customary law from disinheritance. Suffice it to say that the Marriage Act referred to has since been repealed and replaced by the Marriages Act [Chapter 5 :17 which came into operation on 16 September 2022. In reality therefore the crisp issue for determination is whether a civil marriage should continue to be recognised where there is already in existence a customary marriage, registered or otherwise.

The starting point is s 2 of the Constitution, which declares the Constitution to be the supreme law. Any law inconsistent with it is invalid to the extent of the inconsistency. The applicant's central attack is directed not merely at inheritance consequences but at the normative structure of s 68(4), which he argues entrenches unequal marital status and validates conduct otherwise prohibited by marriage legislation.

PURPOSE AND EFFECT OF SECTION 68(4)

The legislative history and judicial interpretation of s 68(4) reveal that the provision was enacted to address a recurring social injustice. Prior to its enactment, women married under customary law were indeed frequently excluded from inheritance where the deceased subsequently contracted a civil marriage with another woman. Because civil marriages enjoyed formal statutory recognition, customary wives and their children often suffered complete disinheritance.

Section 68(4) which came into force in 1997 after a seismic revamp of inheritance laws under customary law, was designed to prevent that injustice by ensuring that a prior customary law marriage is not extinguished for inheritance purposes merely because a subsequent civil marriage was contracted.

This rationale was explained in *Ndlovu* v *Ndlovu & Ors* 2011 (1) ZLR 81 (H) 81, where the court observed that the legislature intended to protect women in customary unions who would otherwise be rendered legally invisible upon the contracting of a later civil marriage.

Similarly, in *Mutsindiri* v *Tawodzera N.O & Ors HH 163/23*, the court also held that the effect of s 68(4) is to treat the later civil marriage as customary in character for inheritance purposes.

The provision therefore does not invalidate the earlier customary union; rather, it prevents the later civil marriage from defeating the proprietary and inheritance interests of the customary law spouse. As explained by MATHONSI J as he then was in *Ndlovu* v *Ndlovu* at p87 (B) on the import of s 68 (4) in recognising a customary marriage alongside a civil one:

> "In my view the legislature has unquestionably raised the status of a customary marriage to the same level as a civil marriage. There cannot be any clearer language by which to recognise such a marriage. In my view this was borne by a realisation that no matter how you try to ''civilise'' an African man, he shall forever remain entangled in the web of customary law and invariably shall have a customary wife somewhere in the back ground, even as he upgrades himself by marrying someone else by civil rites. It is those customary wives which the legislature sought to protect."

WHETHER SECTION 68(4) VIOLATES EQUALITY RIGHTS

Section 56 of the Constitution prohibits unfair discrimination and guarantees equal protection and benefit of the law. The mere fact that legislation differentiates between situations or categories does not automatically render it unconstitutional. The inquiry is whether the differentiation is irrational, arbitrary, or results in unfair discrimination. The applicant's argument proceeds on the premise that the provision grants men the practical ability to participate simultaneously in customary and civil marriage regimes while women do not enjoy an equivalent advantage.

However, s 68(4) does not create or authorize such marriages. The prohibition against contracting a civil marriage while already married under customary law is governed by the

Marriages Act in s5. The impugned provision does not regulate marriage formation; it regulates inheritance consequences after death.

Its purpose is remedial and protective. It seeks to preserve the rights of women married under customary law who historically suffered prejudice under succession law. Far from subordinating customary marriages, the provision elevates them by ensuring recognition equal to that accorded civil marriages for inheritance purposes. In other words, s 68 (4) encapsulates a customary solution to polygamy where an unregistered customary marriage was previously being overtaken by a civil marriage. The continued existence of s 68 (4) is alive to the fact that the needs of spouses under such mixed unions have to be met. Constitutionally, the state, under the 2013 Constitution is called upon in s26 to ensure that spouses are protected after death. Save for the continued reference to the Marriage Act [*Chapter 5:11*] that has since been repealed, s 68 (4) in its overall content is therefore already in harmony with this national objective. When read contextually and purposively, the objective is not to degrade one marriage form in favour of another, but to avoid exclusionary consequences in succession disputes. It operates narrowly and specifically within the law of deceased estates administration.

The constitutional principle of equality does not prohibit Parliament from adopting legislative mechanisms aimed at substantive fairness and protection of vulnerable spouses. In assessing constitutional validity, the court must consider social reality. Whilst customary law permits polygamy, an aspect which has played out in society is the mixing of marriage types in creating a polygamous marriage. As applicant points out, the Marriages Act now seeks to prohibit this practice. The reality though is that practices hardly change overnight and there are marriages contracted polygamously under an illegal concoction of Acts that remain in existence today. This is where a man will have taken on another wife- which is perfectly permissible under customary law, but under the wrong law. The reality is that he will have acted polygamously and it makes sense to recognise that marriage as a customary marriage for purposes of inheritance. Zimbabwean society has historically accommodated customary unions alongside civil marriages. The legislature was entitled to enact measures addressing the vulnerabilities created by that reality. (See for example *Mujawo* v *Chogugudza* 1992 (2) ZLR 321 (S) as an example of an inheritance dispute that arose from marriage type mixing. S 68 (4) was brought into effect by the Administration of Estates Amendment Act No.6 of 1997).

The relevant law, in administering the estate under customary law in polygamous situations, does in fact give precedence in s68F to the senior wife where there is no inheritance plan. If applicant ‘s concern is that a first wife is prejudiced by the coming on board of other wives, then what he should bravely call out for is the abolishing of polygamy itself as opposed to targeting measures that seek to protect widows in the aftermath of polygamy. Realistically though, polygamy will not disappear any time soon. Equality incorporates difference and not sameness. Equality also incorporates diversity in culture and customs and practices under the Constitution as long as they are not contrary to fundamental rights and freedoms . The point is that polygamy is still deemed acceptable by men and women in our society and it is not the protection of widows that should be under attack. Where there has been a mixture of marriages as envisaged under s 68 (4) the marriages are both regarded as customary law marriages precisely to target discrimination that was taking place against widows whose marriages were not registered. They would in some cases not be aware of the nature and effects of marriage their spouse had subsequently entered into.

In my view, s 68(4) continues to serve a protective constitutional function under the new Constitution even if the provision preceded that Constitution. In other words, the existing law is already in harmony with the existing Constitution. It recognizes the lived realities of women in customary unions and prevents their exclusion from inheritance solely because a deceased spouse later contracted a civil marriage with someone else. There is no demeaning of the first wife in any way. A customary marriage being by its very nature potentially polygamous, it cannot be argued that a woman who is married later is a usurper. What was simply irrational and discriminatory was the pre 1997 situation which the legislature sought to address which was that a later civil marriage could not and should not be allowed to up end an existing customary marriage. Therefore, any inconsistency perceived from the section in its recognition of a civil marriage alongside an existing customary law marriage, is a qualified inconsistency.

WOMEN’S RIGHTS AND THE QUESTION OF SUBSTANTIVE EQUALITY

The applicant relies heavily on s 80 of the Constitution, particularly the guarantee that women have equal dignity and rights with men. The Constitution requires courts to move beyond formal equality toward substantive equality. The question is whether the impugned provision perpetuates systemic disadvantage or instead ameliorates it.

The applicant's contention that the provision benefits men more than women, overlooks the actual beneficiaries of the provision. The principal beneficiaries are women married under customary law and their children, whose inheritance rights would otherwise be jeopardized. Its practical effect is to safeguard women from disinheritance and economic vulnerability. The fact that polygamy generally benefits men is a separate issue altogether from s68 (4)

THE RELATIONSHIP BETWEEN THE ADMINISTRATION OF ESTATES ACT AND THE MARRIAGES ACT

The applicant further argues that s 68(4) conflicts with s 5 of the Marriages Act, which prohibits simultaneous civil and customary marriages. There is merit in the observation that the Marriages Act discourages dual marriage regimes. However, the impugned provision does not purport to validate prohibited marriages for all legal purposes. It merely addresses the proprietary consequences arising after death where such relationships existed in fact.

Courts frequently distinguish between validating unlawful conduct and regulating its consequences in order to protect innocent parties. Section 68(4) falls within the latter category.

The law often intervenes to protect vulnerable spouses and children notwithstanding irregularities in marital arrangements. The legislature was entitled to prioritize equitable estate distribution over strict formalism.

THE CLAIM UNDER SECTION 71

The applicant also invokes s 71 of the Constitution concerning property rights. However, no arbitrary deprivation of property has been established. The law of succession inherently regulates competing proprietary claims among beneficiaries. Section 68(4) merely determines the class of persons entitled to inherit. A spouse entering a civil marriage where a prior customary marriage exists cannot legitimately expect that the earlier spouse will be entirely excluded from inheritance. The provision balances competing inheritance interests rather than arbitrarily depriving anyone of property.

WHETHER THE RELIEF SOUGHT IS COMPETENT

The respondents correctly argue that portions of the relief sought are imprecise and difficult to enforce, particularly the directive compelling unspecified measures to advise Government within a prescribed timeframe. Courts do not issue vague or abstract orders incapable of practical implementation. A declaratory order must define rights with sufficient clarity to permit enforcement. However, given my conclusion on the merits, it is unnecessary to dwell extensively on the competence of the consequential relief.

CONCLUSION

The court accepts that constitutional scrutiny of legislation affecting women's rights and inheritance is both necessary and important. Nevertheless, constitutional adjudication requires the court to evaluate legislation in its full social and legal context. Section 68(4) of the Administration of Estates Act was enacted to cure historical prejudice suffered by customary law spouses in inheritance disputes. Its dominant purpose and practical effect are protective rather than discriminatory.

The applicant has failed to establish that the provision violates ss 56, 71, 80 or any other constitutional provision relied upon. The differentiation created by the section is rationally connected to a legitimate legislative objective and advances substantive equality for women in customary unions.

Accordingly, the application cannot succeed.

It is ordered that:

1. The preliminary point on *locus standi* be and is hereby dismissed.
2. The application for a declaratory order be and is hereby dismissed.
3. There shall be no order as to costs.

Tsanga J:……..

Caleb Mucheche &Partners; Applicant's Legal Practitioners
Civil Division of the Attorney General's Office; First Respondent's Legal Practitioners
Masters Office; For the Master